UNITED STATES OFFICE OF PERSONNEL MANAGEMENT

# Taxpayer-Funded Union Time Usage in the Federal Government

# Fiscal Year 2019

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## Introduction

President Trump has recognized the importance of strategic workforce management, placing it at the top of his agenda for modernizing the Federal Government in key areas that will improve the ability to deliver mission outcomes, provide excellent customer service, and effectively steward taxpayer dollars. In support of this important effort, and to meet the needs and expectations of agencies, employees, and the ultimate customers – the American people – it is necessary to set sensible standards for granting and using taxpayer-funded union time by Federal employees for labor-management relations activities. This Governmentwide report on the use of taxpayer-funded union time and other government resources for Federal employees representing labor organizations ensures transparency and accountability regarding the use of tax dollars.

## Taxpayer-Funded Union Time

The Federal Service Labor-Management Relations Statute (Statute)[1] establishes the collective bargaining system in the Federal Government. The Statute further specifies that its provisions should be interpreted "in a manner consistent with the requirements of an effective and efficient Government."[2] In any case, some provisions of the Statute result in considerable costs to the Government and taxpayers, such as matters involving official time, referenced here as "taxpayer-funded union time" or "TFUT," without any comprehensive evidence that these provisions support an effective and efficient Government in all instances.

Large amounts of official time allocated to agency employees conducting activities on behalf of unions have resulted in widespread diversion of resources from agency mission-critical functions. In many cases, where agency union representatives serve as full-time union officials, agencies are no longer able to rely on employees even for a portion of their duty time, to complete the duties of the positions for which they were hired.

"Official time," as authorized by 5 U.S.C. § 7131, is paid time spent by Federal employees performing representational work for a bargaining unit in lieu of their regularly assigned work. In other words, the Federal Labor Relations Authority (FLRA) has equated official time to be the same as work time or hours of work.[3]

Executive Order (EO) 13837, *"Ensuring Transparency, Accountability, and Efficiency in Taxpayer-Funded Union Time Use,"* acknowledges that Federal law allows Federal employees to represent labor organizations and perform other non-agency business while being paid by the American taxpayer - taxpayer-funded union time. The EO further notes, however, that Congress has instructed the executive branch to interpret the law in a manner consistent with the requirements of an effective and efficient Government. In support of this objective, the EO sets sensible standards for granting and using taxpayer-funded union time.

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[1] 5 U.S.C. Chapter 71.
[2] 5 U.S.C. § 7101(b).
[3] 68 FLRA 846 (2015)

Section 1 of EO 13837 outlines key objectives:

- Agencies should ensure that taxpayer-funded union time is used efficiently and authorized in amounts that are reasonable, necessary, and in the public interest;
- Federal employees should spend the clear majority of their duty hours working for the public;
- No agency should pay for Federal labor organizations' expenses, except where required by law;
- Agencies should eliminate unrestricted grants of taxpayer-funded union time and instead require employees to obtain specific authorization before using such time; and
- Agencies should also monitor use of taxpayer-funded union time, ensure it is used only for authorized purposes, and make information regarding its use readily available to the public.

**Agency Reporting Requirements and Public Disclosure and Transparency**

Section 6 of EO 13837 requires each agency to submit an annual report to the U.S. Office of Personnel Management (OPM) on the following:

1) The purposes for which the agency has authorized the use of taxpayer-funded union time, and the amounts of time used for each such purpose;
2) The job title and total compensation of each employee who has used taxpayer-funded union time in the fiscal year, as well as the total number of hours each employee spent on these activities and the proportion of each employee's total paid hours that number represents;[4]
3) If the agency has allowed labor organizations or individuals on taxpayer-funded union time the free or discounted use of government property, the total value of such free or discounted use;
4) Any expenses the agency paid for activities conducted on taxpayer-funded union time; and
5) The amount of any reimbursement paid by the labor organizations for the use of government property.

In addition, Section 6 notes that if an agency's aggregate union time rate (i.e., the average of the union time rates in each agency bargaining unit, weighted by the number of employees in each unit) has increased overall from the last fiscal year, the agency shall explain this increase. We note that for purposes of this first Governmentwide report under EO 13837, we requested that agencies explain any increase for the last fiscal year agencies reported any data to OPM – Fiscal Year 2016.

Section 7 of EO 13837 requires the OPM Director to analyze the agency reports and produce an annual report by June 30 of each year. The EO further notes that the first report shall cover fiscal year 2019 and shall be published by June 30, 2020. Due to the impacts on agencies of the COVID-19 emergency (e.g., the need for previously unanticipated work products, the disruptions caused by the transition to employees working away from their normal office locations, and the

[4] However, as specified in Section 7 of EO 13837, this report will detail agency data in the aggregate.

loss of some staff hours to illness), however, there were delays in receiving FY 2019 data from many agencies, preventing publication of the Governmentwide report by the June 30, 2020 deadline. This report includes the OPM analysis of agency submissions covering FY 2019 as required by Section 7.

The publication of the EO resulted in a focus on this project which has improved the efficiency and reliability of the data over what otherwise might have been expected during this period. As a result, future data is expected to become increasingly efficient and reliable over time.

**Preventing Unlawful or Unauthorized Expenditures**

Section 4(b) of EO 13837 provides that employees may not use taxpayer-funded union time without advance written authorization from their agency, except where obtaining prior approval is deemed impracticable under regulations or guidance from OPM. Section 5 requires each agency to develop and implement a procedure governing the authorization of taxpayer-funded union time under section 4(b). Section 5 further requires each agency to develop and implement a system to monitor the use of taxpayer-funded union time to verify that it is being used only for authorized purposes, and that it is not being used contrary to law or regulation.

While there is no uniform Governmentwide requirement concerning the degree and specificity of records kept for this purpose, OPM provides guidance to agencies to record taxpayer-funded union time by using the following categories: (1) Term Negotiations; (2) Mid-Term Negotiations; (3) Dispute Resolution; and (4) General Labor-Management Relations. (See Appendix A).

OPM has changed the approach it takes to gathering taxpayer-funded union time information from agencies. Previously, OPM gathered data from automated time and attendance systems via the Enterprise Human Resources Integration (EHRI) system, if agencies reported taxpayer-funded union time payroll data to EHRI. Agencies that reported taxpayer-funded union time data via EHRI were asked to verify the taxpayer-funded union time hours used by employee representatives within their organizations, and to validate how those hours were used within the four predefined categories.[5] Each agency that reported taxpayer-funded union time data electronically received a consolidated report, encompassing all agency subcomponents, of its taxpayer-funded union time usage within each of the four categories. OPM then requested explanations for the basis of any discrepancies between OPM's EHRI data and the data reported by an agency. OPM requested these explanations based on feedback from the Government Accountability Office. In instances where agencies identified corrections to the data reported to OPM's EHRI system, they were asked to indicate (a) whether the agency was aware of the cause of the discrepancy; (b) what efforts, if any, would be made to correct the data in the current report; and (c) what, if anything, would be done to improve the quality of data reported to EHRI in the future. Agencies that did not report taxpayer-funded union time data via EHRI were asked to submit their taxpayer-funded union time usage manually for previous reports.

[5] This verification process was designed to improve the accuracy of official time that had been entered into EHRI by agencies. However, OPM had no means of confirming that official time entered by employees working in a representational capacity was a full and accurate representation of official time actually utilized.

Due to new data requirements in EO 13837, necessitating the collection of data not available through EHRI, and various challenges with obtaining accurate data from EHRI for other requirements, OPM directed agencies to report all required data to OPM via a template developed by OPM, instead of using EHRI data as described above. OPM has relied on each agency to report accurate data to OPM, which is now included in this new Governmentwide report. We believe this has facilitated greater transparency, accountability, and accuracy. However, OPM will continue to work with agencies in identifying ways to improve the reporting of TFUT and the reliability of such data.

**Fiscal Year 2019 Taxpayer-Funded Union Time Survey Findings**

During FY 2019[6], unions represented 1,329,222 non-Postal Federal civil service bargaining unit employees.[7] Agencies[8] reported that bargaining unit employees spent a total of 2,606,390 hours performing representational duties on taxpayer-funded union time, a decrease of 28.26 percent compared to FY 2016.[9] Governmentwide, the number of taxpayer-funded union time hours used per bargaining unit employee on representational matters decreased from 2.97 hours in FY 2016 to 1.96 hours during FY 2019.

OPM considers changes in official time usage per bargaining unit employee from 2016 to 2019 to be statistically significant. It should be noted, however, that this is the first year in which data had been captured utilizing the TFUT reporting process. So, for example, while the total number of bargaining unit employees for FY 2019 is higher than previous reports, this may be largely a reflection of more accurate reporting by agencies to OPM due to the changes made in the TFUT reporting process. Moreover, decreases in official time, overall, could be, in part, generated by more stringent reporting requirements that have resulted in more accurate reporting of TFUT. It should also be noted that for the proportion of TFUT hours to overall time, contained in the second column in the table below, the "overall time" includes the full duty hours over the course of a full year for all employees that utilize TFUT even if the number of TFUT utilized is negligible. As this tends to result in a large "overall time" number, it is possible, that this data may obscure the prevalence of agency union officials that have or continue to be allotted large allotments of TFUT, in some cases automatically allocated up to 100% of their time.

**Taxpayer-Funded Union Time Usage by Bargaining Unit Employees**

The following table shows the number of agency bargaining unit employees (BUEs) who used taxpayer-funded union time during FY 2019 and the proportion of paid time spent on such

[6] Numbers include agencies covered by EO 13837.
[7] The FY 2016 report included employees of the U.S. Capitol Police, the Government Publishing Office, Holocaust Memorial Museum, International Boundary and Water Commission, National Gallery of Art, Presidio Trust, and Smithsonian. These organizations are not included in the FY 2019 report based on the coverage requirements of EO 13837 issued on May 25, 2018.
[8] Fifty-four of the 55 agencies covered in this report complied with EO 13837 and submitted their taxpayer-funded union time data to OPM. The Corporation for National and Community Service did not provide any of the data required by the EO to OPM when requested.
[9] The amount of official time hours for Fiscal Year 2019 may be a reflection, in part, of more accurate reporting by agencies to OPM due to the changes made in the TFUT reporting process as well as EO requirements regarding monitoring and approval of official time.

activities. The proportion of TFUT hours to overall time was provided by agencies for each employee who used TFUT in FY 2019. OPM used the average of the proportions provided by agencies to calculate the overall proportion of time spent on TFUT. The table also shows the number of total bargaining unit employees, by agency, and the change in the number of bargaining unit employees between FY 2016 and FY 2019. The number of bargaining unit employees for FY 2019 was 1,329,222.

| BARGAINING UNIT EMPLOYEES BY DEPARTMENT/AGENCY – FY 2019 vs. FY 2016 | | | | | |
|---|---|---|---|---|---|
| **Department/Agency** | **Number of Agency BUEs who used TFUT[10] in FY 2019** | **FY 2019 Proportion of TFUT Hours to Overall Time[11]** | **FY 2019 Number of BUEs[12]** | **FY 2016 Number of BUEs** | **% Change in the Number of BUEs** |
| U.S. Agency for Global Media (formerly BBG) | 8 | 15.50% | 929 | 1,168 | -20.46% |
| U.S. Agency for International Development | 2 | 50.10% | 696 | 2,789 | -75.04% |
| Armed Forces Retirement Home | 7 | 8.38% | 209 | 159 | 31.45% |
| U.S. Commission on Civil Rights | 0 | 0.00% | 19 | 21 | -9.52% |
| Commodity Futures Trading Commission | 9 | 3.96% | 401 | 436 | -8.03% |
| Consumer Financial Protection Bureau | 24 | 9.67% | 897 | 1,105 | -18.82% |
| Consumer Product Safety Commission | 4 | 3.76% | 376 | 413 | -8.96% |
| Corporation for National and Community Service | No Response | No Response | 319 | 443 | -27.99% |
| Court Services and Offender Supervision Agency | 8 | 2.25% | 497 | 552 | -9.96% |
| Department of Agriculture | 753 | 23.08% | 35,671 | 38,037 | -6.22% |
| Department of Commerce | 300 | 9.37% | 20,603 | 20,489 | 0.56% |
| Department of Defense | 3,235 | 8.54% | 492,668 | 409,569 | 20.29%[13] |
| Department of Education | 1 | 0.09% | 2,189 | 2,646 | -17.27% |
| Department of Energy | 78 | 3.67% | 5,755 | 6,722 | -14.39% |
| Department of Health and Human Services | 121 | 4.02% | 33,752 | 34,485 | -2.13% |

[10] FY 2016 data is not available for comparison to the number of FY 2019 BUEs who used taxpayer-funded union time. This is a new data element for the report.
[11] FY 2016 data is not available for comparison to the FY 2019 proportion of taxpayer-funded union time hours to the overall time. The FY 2016 report did not track this data element.
[12] Since the Corporation for National and Community Service did not provide data to OPM, the number of BUEs for this agency was extracted from EHRI as of August 31, 2019, the most recent data available to OPM.
[13] Although the total number of bargaining unit employees for FY 2019 is higher than previous reports, this is a reflection of more accurate reporting by agencies to OPM due to the changes made in the TFUT reporting process.

| BARGAINING UNIT EMPLOYEES BY DEPARTMENT/AGENCY – FY 2019 vs. FY 2016 | | | | | |
|---|---|---|---|---|---|
| **Department/Agency** | **Number of Agency BUEs who used TFUT[10] in FY 2019** | **FY 2019 Proportion of TFUT Hours to Overall Time[11]** | **FY 2019 Number of BUEs[12]** | **FY 2016 Number of BUEs** | **% Change in the Number of BUEs** |
| Department of Homeland Security | 2,630 | 3.54% | 118,323 | 100,746 | 17.45% |
| Department of Housing and Urban Development | 78 | 19.95% | 5,180 | 5,685 | -8.88% |
| Department of Justice | 1,621 | 10.59% | 32,154 | 34,572.00 | -6.99% |
| Department of Labor | 301 | 10.17% | 9,840 | 11,065 | -11.07% |
| Department of State (includes AFSA unit) | 6 | 82.00% | 20,400 | 20,400 | 0.00% |
| Department of the Interior | 155 | 4.05% | 20,058 | 19,343 | 3.70% |
| Department of the Treasury | 1,421 | 17.46% | 68,625 | 70,729 | -2.97% |
| Department of Transportation | 2,392 | 5.02% | 38,068 | 38,261 | -0.50% |
| Department of Veterans Affairs | 1,895 | 15.95% | 324,105 | 297,324 | 9.01% |
| Environmental Protection Agency | 168 | 8.60% | 10,175 | 11,442 | -11.07% |
| Equal Employment Opportunity Commission | 29 | 7.74% | 2,021 | 1,503 | 34.46% |
| Export-Import Bank | 3 | 0.08% | 34 | 31 | 9.68% |
| Federal Communications Commission | 16 | 19.00% | 847 | 1,006 | -15.81% |
| Federal Deposit Insurance Corporation | 70 | 2.49% | 4,017 | 4,487 | -10.47% |
| Federal Election Commission | 4 | 0.18% | 147 | 183 | -19.67% |
| Federal Energy Regulatory Commission | 5 | 0.78% | 1,059 | 1,109 | -4.51% |
| Federal Mediation and Conciliation Service | 0 | 0.00% | 27 | 27 | 0.00% |
| Federal Trade Commission | 2 | 0.07% | 256 | 286 | -10.49% |
| General Services Administration | 40 | 42.21% | 5,938 | 6,266 | -5.23% |
| U.S. International Development Finance Corporation (formerly OPIC) | 1 | 6.50% | 163 | 139 | 17.27% |
| U.S. International Trade Commission | 10 | 10.00% | 300 | 268 | 11.94% |
| Merit Systems Protection Board | 6 | 4.85% | 67 | 85 | -21.18% |
| National Aeronautics and Space Administration | 58 | 10.27% | 9,214 | 9,203 | 0.12% |
| National Archives and Records Administration | 45 | 12.15% | 1,807 | 2,020 | -10.54% |
| National Credit Union Administration | 17 | 2.70% | 843 | 953 | -11.54% |

| BARGAINING UNIT EMPLOYEES BY DEPARTMENT/AGENCY – FY 2019 vs. FY 2016 | | | | | |
|---|---|---|---|---|---|
| **Department/Agency** | **Number of Agency BUEs who used TFUT[10] in FY 2019** | **FY 2019 Proportion of TFUT Hours to Overall Time[11]** | **FY 2019 Number of BUEs[12]** | **FY 2016 Number of BUEs** | **% Change in the Number of BUEs** |
| National Endowment for the Arts | 2 | 0.21% | 86 | 94 | -8.51% |
| National Endowment for the Humanities | 2 | 0.15% | 83 | 35 | 137.14% |
| National Labor Relations Board | 101 | 4.87% | 788 | 939 | -16.08% |
| National Mediation Board | 1 | 0.06% | 8 | 10 | -20.00% |
| National Science Foundation | 9 | 11.14% | 956 | 944 | 1.27% |
| National Transportation Safety Board | 0 | 0.00% | 273 | 302 | -9.60% |
| Nuclear Regulatory Commission | 26 | 12.88% | 1,937 | 2,319 | -16.47% |
| U.S. Office of Personnel Management | 28 | 9.58% | 1,295 | 1,324 | -2.19% |
| Peace Corps | 8 | 0.85% | 356 | 493 | -27.79% |
| Pension Benefit Guaranty Corporation | 3 | 6.67% | 503 | 562 | -10.50% |
| Pretrial Services Agency | 9 | 1.77% | 237 | 270 | -12.22% |
| Railroad Retirement Board | 8 | 30.27% | 595 | 651 | -8.60% |
| Securities and Exchange Commission | 34 | 12.83% | 3,203 | 3,411 | -6.10% |
| Small Business Administration | 21 | 10.39% | 1,059 | 1,097 | -3.46% |
| Social Security Administration | 1,287 | 10.85% | 49,194 | 49,783 | -1.18% |
| **Total - all TFUT agencies** | **17,062** | **10.21%** | **1,329,222** | **1,224,160[14]** | **8.58%** |

## Comparison of Taxpayer-Funded Union Time Hours & Rates to Previous Reporting Year

The following table shows the number of taxpayer-funded union time hours agencies reported and the taxpayer-funded union time rate, with the changes between FY 2016 and FY 2019. The taxpayer-funded union time rate, also referred to as the Hours Per Bargaining Unit Employee or HPE rate, which indicates the number of taxpayer-funded union time hours expended per bargaining unit employee in a fiscal year, allows for meaningful comparisons of taxpayer-funded union time usage among agencies. The amount of taxpayer-funded union time hours used in FY 2019 was 2,606,390 hours, which is a decrease from the 3,633,290 hours reported in FY 2016. The average FY 2019 Governmentwide[15] HPE rate was 1.96 which is a decrease from the FY 2016 HPE rate of 2.97. Forty-one (41) agencies reported reductions in the their HPE rates, whereas twelve (12) agencies reported increases, and one (1) agency reported no

[14] The total number of BUEs reflects FY 2016 totals from the published OPM report, not the sum of BUEs in the column.

[15] Numbers include agencies covered by EO 13837 and do not include the U.S. Postal Service.

changes in the taxpayer-funded union time hours per bargaining unit employee. One (1) agency, Corporation for National and Community Service, did not report any of the data required by the EO to OPM when requested. Agencies listed various reasons for their HPE increases, such as term negotiations, an increase in BUEs, or more accurate tracking and reporting.

| TAXPAYER-FUNDED UNION TIME HOURS AND RATES BY DEPARTMENT/AGENCY – FY 2019 vs. FY 2016 | | | | | | |
|---|---|---|---|---|---|---|
| **Department/Agency** | **FY 2019 Total TFUT Hours** | **FY 2016 Total TFUT Hours** | **% Change to Number of Total TFUT Hours** | **FY 2019 TFUT Rate** | **FY 2016 TFUT Rate** | **% Change to TFUT Rate** |
| U.S. Agency for Global Media (formerly BBG) | 2,493.00 | 11,245.00 | -77.83% | 2.68 | 9.63 | -72.16% |
| U.S. Agency for International Development | 1,339.25 | 4,463.50 | -70.00% | 1.92 | 1.60 | 20.23% |
| Armed Forces Retirement Home | 995.00 | 610.00 | 63.11% | 4.76 | 3.84 | 24.09% |
| U.S. Commission on Civil Rights | 0.00 | 0.00 | 0.00% | 0.00 | 0.00 | 0.00% |
| Commodity Futures Trading Commission | 621.75 | 1,632.00 | -61.90% | 1.55 | 3.74 | -58.58% |
| Consumer Financial Protection Bureau | 3,991.75 | 6,661.50 | -40.08% | 4.45 | 6.03 | -26.18% |
| Consumer Product Safety Commission | 253.00 | 154.00 | 64.29% | 0.67 | 0.37 | 80.45% |
| Corporation for National and Community Service | No Response | 61.25 | Unknown | No Response | 0.14 | Unknown |
| Court Services and Offender Supervision Agency | 377.35 | 860.39 | -56.14% | 0.76 | 1.56 | -51.29% |
| Department of Agriculture | 67,291.00 | 120,994.00 | -44.38% | 1.89 | 3.18 | -40.70% |
| Department of Commerce | 48,956.75 | 47,771.50 | 2.48% | 2.38 | 2.33 | 1.91% |
| Department of Defense | 526,990.00 | 386,610.25 | 36.31% | 1.07 | 0.94 | 13.32% |
| Department of Education | 1.50 | 6,522.75 | -99.98% | 0.00 | 2.47 | -99.97% |
| Department of Energy | 5,771.50 | 9,247.25 | -37.59% | 1.00 | 1.38 | -27.10% |
| Department of Health and Human Services | 10,161.00 | 67,722.93 | -85.00% | 0.30 | 1.96 | -84.67% |
| Department of Homeland Security | 220,372.00 | 249,326.15 | -11.61% | 1.86 | 2.47 | -24.74% |
| Department of Housing and Urban Development | 24,852.50 | 42,473.25 | -41.49% | 4.80 | 7.47 | -35.78% |
| Department of Justice | 228,545.00 | 366,416.75 | -37.63% | 7.11 | 10.60 | -32.94% |
| Department of Labor | 53,262.20 | 48,493.00 | 9.83% | 5.41 | 4.38 | 23.51% |
| Department of State (includes AFSA unit) | 8,190.00 | 17,929.00 | -54.32% | 0.40 | 0.88 | -54.32% |
| Department of the Interior | 13,208.10 | 17,103.50 | -22.78% | 0.66 | 0.88 | -25.53% |
| Department of the Treasury | 353,820.00 | 481,500.00 | -26.52% | 5.16 | 6.81 | -24.26% |
| Department of Transportation | 213,851.98 | 255,266.26 | -16.22% | 5.62 | 6.67 | -15.80% |
| Department of Veterans Affairs | 502,082.05 | 1,048,569.00 | -52.12% | 1.55 | 3.53 | -56.07% |
| Environmental Protection Agency | 22,760.50 | 58,274.75 | -60.94% | 2.24 | 5.09 | -56.08% |
| Equal Employment Opportunity Commission | 3,962.25 | 5,760.30 | -31.21% | 1.96 | 3.83 | -48.84% |
| Export-Import Bank | 7.50 | 0.00 | N/A | 0.22 | 0.00 | N/A |

| TAXPAYER-FUNDED UNION TIME HOURS AND RATES BY DEPARTMENT/AGENCY – FY 2019 vs. FY 2016 | | | | | | |
|---|---|---|---|---|---|---|
| **Department/Agency** | **FY 2019 Total TFUT Hours** | **FY 2016 Total TFUT Hours** | **% Change to Number of Total TFUT Hours** | **FY 2019 TFUT Rate** | **FY 2016 TFUT Rate** | **% Change to TFUT Rate** |
| Federal Communications Commission | 4,066.00 | 1,804.75 | 125.29% | 4.80 | 1.79 | 167.59% |
| Federal Deposit Insurance Corporation | 3,633.00 | 4,803.00 | -24.36% | 0.90 | 1.07 | -15.51% |
| Federal Election Commission | 10.50 | 6.00 | 75.00% | 0.07 | 0.03 | 117.86% |
| Federal Energy Regulatory Commission | 71.50 | 361.00 | -80.19% | 0.07 | 0.33 | -79.26% |
| Federal Mediation and Conciliation Service | 0.00 | 10.50 | -100.00% | 0.00 | 0.39 | -100.00% |
| Federal Trade Commission | 2.00 | 76.50 | -97.39% | 0.01 | 0.27 | -97.08% |
| General Services Administration | 26,247.40 | 34,214.60 | -23.29% | 4.42 | 5.46 | -19.05% |
| U.S. International Development Finance Corporation (formerly OPIC) | 136.00 | 124.50 | 9.24% | 0.83 | 0.90 | -6.85% |
| U.S. International Trade Commission | 133.00 | 1,173.00 | -88.66% | 0.44 | 4.38 | -89.87% |
| Merit Systems Protection Board | 76.00 | 40.50 | 87.65% | 1.13 | 0.48 | 138.07% |
| National Aeronautics and Space Administration | 7,843.10 | 12,714.25 | -38.31% | 0.85 | 1.38 | -38.39% |
| National Archives and Records Administration | 8,017.70 | 1,0370.10 | -22.68% | 4.44 | 5.13 | -13.57% |
| National Credit Union Administration | 960.20 | 2,514.90 | -61.82% | 1.14 | 2.64 | -56.84% |
| National Endowment for the Arts | 7.50 | 38.75 | -80.65% | 0.09 | 0.41 | -78.84% |
| National Endowment for the Humanities | 6.00 | 365.00 | -98.36% | 0.07 | 10.43 | -99.31% |
| National Labor Relations Board | 7,485.00 | 7,584.50 | -1.31% | 9.50 | 8.08 | 17.60% |
| National Mediation Board | 1.00 | 27.30 | -96.34% | 0.13 | 2.73 | -95.42% |
| National Science Foundation | 184.25 | 873.50 | -78.91% | 0.19 | 0.93 | -79.17% |
| National Transportation Safety Board | 0.00 | 100.25 | -100.00% | 0.00 | 0.33 | -100.00% |
| Nuclear Regulatory Commission | 3,969.75 | 4,656.00 | -14.74% | 2.05 | 2.01 | 2.08% |
| U.S. Office of Personnel Management | 4,482.00 | 8,969.50 | -50.03% | 3.46 | 6.77 | -48.91% |
| Peace Corps | 109.75 | 250.00 | -56.10% | 0.31 | 0.51 | -39.21% |
| Pension Benefit Guaranty Corporation | 424.50 | 777.25 | -45.38% | 0.84 | 1.38 | -38.98% |
| Pretrial Services Agency | 263.75 | 2264.75 | -88.35% | 1.11 | 8.39 | -86.73% |
| Railroad Retirement Board | 3673.20 | 4,724.90 | -22.26% | 6.17 | 7.26 | -14.94% |
| Securities and Exchange Commission | 7,072.75 | 8,193.50 | -13.68% | 2.21 | 2.40 | -8.07% |
| Small Business Administration | 3,815.50 | 4,775.25 | -20.10% | 3.60 | 4.35 | -17.23% |
| Social Security Administration | 209,542.00 | 255,481.00 | -17.98% | 4.26 | 5.13 | -17.00% |

| TAXPAYER-FUNDED UNION TIME HOURS AND RATES BY DEPARTMENT/AGENCY – FY 2019 vs. FY 2016 | | | | | | |
|---|---|---|---|---|---|---|
| **Department/Agency** | **FY 2019 Total TFUT Hours** | **FY 2016 Total TFUT Hours** | **% Change to Number of Total TFUT Hours** | **FY 2019 TFUT Rate** | **FY 2016 TFUT Rate** | **% Change to TFUT Rate** |
| **Total - all TFUT agencies** | **2,606,390.28** | **3,633,290.33**[16] | **-28.26%** | **1.96** | **2.97**[17] | **-34.00%** |

## Value of Government Property Usage and Other Expenses, and Agency Reimbursements

Taxpayer-funded non-payroll costs for union activities can also be significant. Accordingly, the following table shows the value of the free or discounted use of any government property agencies have provided to labor organizations, and any expenses agencies paid in relation to activities conducted on taxpayer-funded union time (such as travel or per diems), in FY 2019. OPM's previous reports on taxpayer-funded union time did not capture a complete accounting of all the costs of union activities in the Federal Government. In particular, prior OPM reports did not include the costs of taxpayer-funded facilities, equipment, and travel expenses agencies provide labor organizations as a result of collective bargaining, which agencies are now required to report to OPM pursuant to EO 13837. Accordingly, no comparison to the preceding year is possible for this data.

Of the 54 agencies who reported data to OPM, only three agencies (DoD, SEC, and SBA) received reimbursements for the use of government property. (These reimbursements amounted to $53,855.50.) The percentage change in each of these values from the previous reporting year is not listed because, as noted above, FY 2019 is the first year agencies reported government property value usage and other expenses to OPM.

| VALUE OF GOVERNMENT PROPERTY AND OTHER EXPENSES BY DEPARTMENT/AGENCY – FY 2019 | | |
|---|---|---|
| **Department/Agency** | **Value of Government Property FY 2019** | **Value of Other Agency Expenses FY 2019** |
| U.S. Agency for Global Media (formerly BBG) | $46,764.45 | $0.00 |
| U.S. Agency for International Development | $33,429.42 | $0.00 |
| Armed Forces Retirement Home | $1,144.00 | $0.00 |
| U.S. Commission on Civil Rights | $0.00 | $0.00 |
| Commodity Futures Trading Commission | $19,692.48 | $0.00 |
| Consumer Financial Protection Bureau | $13,202.95 | $9,406.72 |
| Consumer Product Safety Commission | $4,000.00 | $0.00 |
| Corporation for National and Community Service | No Response | No Response |

[16] The FY 2016 total number of taxpayer-funded union time hours reflects the FY 2016 totals from the published OPM official time report, not the sum of the hours in the column.
[17] The hours per BUE reflects the FY 2016 rate from the published OPM official time report, not the actual average HPE rate calculated in the column.

| VALUE OF GOVERNMENT PROPERTY AND OTHER EXPENSES BY DEPARTMENT/AGENCY – FY 2019 | | |
|---|---|---|
| **Department/Agency** | **Value of Government Property FY 2019** | **Value of Other Agency Expenses FY 2019** |
| Court Services and Offender Supervision Agency | $7,542.71 | $4,156.04 |
| Department of Agriculture | $125,653.10 | $252,742.01 |
| Department of Commerce | $230,415.07 | $35,457.00 |
| Department of Defense | $8,411,538.00 | $310,230.00 |
| Department of Education | $0.00 | $0.00 |
| Department of Energy | $116,152.87 | $0.00 |
| Department of Health and Human Services | $161,463.13 | $0.00 |
| Department of Homeland Security | $606,598.98 | $370,590.87 |
| Department of Housing and Urban Development | $423,454.24 | $14,673.78 |
| Department of Justice | $160,126.92 | $256,806.00 |
| Department of Labor | $135,811.00 | $532,215.96 |
| Department of State (includes AFSA unit) | $163,087.47 | $0.00 |
| Department of the Interior | $166,516.00 | $8,544.00 |
| Department of the Treasury | $2,495,821.00 | $343,364.00 |
| Department of Transportation | $2,374,644.00 | $17,053.65 |
| Department of Veterans Affairs | $5,991,032.00 | $665,334.11 |
| Environmental Protection Agency | $429,712.13 | $0.00 |
| Equal Employment Opportunity Commission | $0.00 | $0.00 |
| Export-Import Bank | $0.00 | $0.00 |
| Federal Communications Commission | $0.00 | $2,101.29 |
| Federal Deposit Insurance Corporation | $0.00 | $0.00 |
| Federal Election Commission | $23,457.60 | $0.00 |
| Federal Energy Regulatory Commission | $26,094.20 | $0.00 |
| Federal Mediation and Conciliation Service | $0.00 | $0.00 |
| Federal Trade Commission | $9,689.99 | $0.00 |
| General Services Administration | $682,962.00 | $0.00 |
| U.S. International Development Finance Corporation (formerly OPIC) | $0.00 | $0.00 |
| U.S. International Trade Commission | $28,078.00 | $2,995.33 |
| Merit Systems Protection Board | $0.00 | $0.00 |
| National Aeronautics and Space Administration | $199,476.58 | $582.00 |
| National Archives and Records Administration | $0.00 | 0.00 |
| National Credit Union Administration | $6,772.00 | $12,583.48 |

| VALUE OF GOVERNMENT PROPERTY AND OTHER EXPENSES BY DEPARTMENT/AGENCY – FY 2019 | | |
|---|---|---|
| **Department/Agency** | **Value of Government Property FY 2019** | **Value of Other Agency Expenses FY 2019** |
| National Endowment for the Arts | $0.00 | $0.00 |
| National Endowment for the Humanities | $2,196.00 | $0.00 |
| National Labor Relations Board | $70,958.87 | $6,767.07 |
| National Mediation Board | $0.00 | $0.00 |
| National Science Foundation | $25,090.66 | $0.00 |
| National Transportation Safety Board | $7,753.72 | $0.00 |
| Nuclear Regulatory Commission | $3,702.94 | $0.00 |
| U.S. Office of Personnel Management | $8,451.00 | $0.00 |
| Peace Corps | $16,146.00 | $0.00 |
| Pension Benefit Guaranty Corporation | $0.00 | $0.00 |
| Pretrial Services Agency | $17,221.00 | $0.00 |
| Railroad Retirement Board | $49,631.52 | $0.00 |
| Securities and Exchange Commission | $51,197.00 | $8,498.00 |
| Small Business Administration | $148,107.22 | $1,958.20 |
| Social Security Administration | $1,389,346.00 | $600,000.00 |
| **Total – all TFUT agencies** | **$24,884,134.22** | **$3,456,059.51** |

## Purposes of Taxpayer-Funded Union Time

The purposes for which taxpayer-funded union time was granted during FY 2019 are grouped under four categories: Term Negotiations, Mid-Term Negotiations, Dispute Resolution, and General Labor-Management Relations. Taxpayer-funded union time usage for General Labor-Management Relations accounted for the greatest share of Governmentwide taxpayer-funded union time hours. Agencies reported 1,996,948.60 hours in the General Labor-Management Relations category, representing 76.62 percent of all reported taxpayer-funded union time hours.

| PURPOSES OF TAXPAYER-FUNDED UNION TIME BY DEPARTMENT/AGENCY – FY 2019 | | | | | |
|---|---|---|---|---|---|
| **Department/Agency** | **Term Negotiation Hours** | **Mid-Term Negotiation Hours** | **Dispute Resolution Hours** | **General Labor-Management Relations Hours** | **FY 2019 Total TFUT Hours** |
| U.S. Agency for Global Media (formerly BBG) | 2.00 | 73.50 | 1,469.25 | 948.25 | 2,493.00 |
| U.S. Agency for International Development | 0.00 | 0.00 | 0.00 | 1,339.25 | 1,339.25 |
| Armed Forces Retirement Home | 303.00 | 50.00 | 91.50 | 550.50 | 995.00 |
| U.S. Commission on Civil Rights | 0.00 | 0.00 | 0.00 | 0.00 | 0.00 |
| Commodity Futures Trading Commission | 74.00 | 0.00 | 0.75 | 547.00 | 621.75 |

| PURPOSES OF TAXPAYER-FUNDED UNION TIME BY DEPARTMENT/AGENCY – FY 2019 | | | | | |
|---|---|---|---|---|---|
| **Department/Agency** | **Term Negotiation Hours** | **Mid-Term Negotiation Hours** | **Dispute Resolution Hours** | **General Labor-Management Relations Hours** | **FY 2019 Total TFUT Hours** |
| Consumer Financial Protection Bureau | 0.00 | 583.00 | 1,001.00 | 2,407.75 | 3,991.75 |
| Consumer Product Safety Commission | 116.50 | 0.00 | 0.00 | 136.50 | 253.00 |
| Corporation for National and Community Service | No Response | No Response | No Response | No Response | No Response |
| Court Services and Offender Supervision Agency | 0.00 | 2.00 | 131.50 | 243.85 | 377.35 |
| Department of Agriculture | 5,705.75 | 1,402.25 | 10,821.75 | 49,361.25 | 67,291.00 |
| Department of Commerce | 8,903.00 | 828.50 | 13,026.50 | 26,198.75 | 48,956.75 |
| Department of Defense | 34,309.00 | 12,665.00 | 106,135.00 | 373,881.00 | 526,990.00 |
| Department of Education | 0.00 | 0.00 | 1.50 | 0.00 | 1.50 |
| Department of Energy | 835.25 | 87.50 | 1,015.25 | 3,833.50 | 5,771.50 |
| Department of Health and Human Services | 150.00 | 287.00 | 693.00 | 9031.00 | 10,161.00 |
| Department of Homeland Security | 17,055.00 | 12,022.25 | 41,151.50 | 150,143.25 | 220,372.00 |
| Department of Housing and Urban Development | 2,110.75 | 330.50 | 19,673.75 | 2,737.50 | 24,852.50 |
| Department of Justice | 42,087.25 | 2,320.75 | 38,872.50 | 145,264.50 | 228,545.00 |
| Department of Labor | 17,289.75 | 353.75 | 2,734.00 | 32,884.70 | 53,262.20 |
| Department of State (includes AFSA unit) | 500.00 | 500.00 | 498.00 | 6,692.00 | 8,190.00 |
| Department of the Interior | 645.75 | 67.25 | 1098.75 | 11,396.35 | 13,208.10 |
| Department of the Treasury | 1,733.00 | 2,791.00 | 23,376.00 | 325,920.00 | 353,820.00 |
| Department of Transportation | 831.67 | 1,232.15 | 10,623.06 | 201,165.10 | 213,851.98 |
| Department of Veterans Affairs | 20,046.30 | 19,982.45 | 80,453.00 | 381,600.30 | 502,082.05 |
| Environmental Protection Agency | 255.75 | 1,430.25 | 1,048.00 | 20,026.50 | 22,760.50 |
| Equal Employment Opportunity Commission | 0.00 | 14.00 | 830.50 | 3,117.75 | 3,962.25 |
| Export-Import Bank | 0.00 | 0.00 | 1.50 | 6.00 | 7.50 |
| Federal Communications Commission | 323.50 | 72.00 | 1,136.75 | 2,533.75 | 4,066.00 |
| Federal Deposit Insurance Corporation | 286.50 | 10.50 | 503.00 | 2,833.00 | 3,633.00 |
| Federal Election Commission | 0.00 | 0.00 | 0.00 | 10.50 | 10.50 |
| Federal Energy Regulatory Commission | 0.00 | 0.00 | 1.00 | 70.50 | 71.50 |
| Federal Mediation and Conciliation Service | 0.00 | 0.00 | 0.00 | 0.00 | 0.00 |
| Federal Trade Commission | 0.00 | 0.00 | 0.00 | 2.00 | 2.00 |
| General Services Administration | 168.30 | 0.00 | 11,607.20 | 14,471.90 | 26,247.40 |
| U.S. International Development Finance Corporation (formerly OPIC) | 0.00 | 0.00 | 8.00 | 128.00 | 136.00 |

| PURPOSES OF TAXPAYER-FUNDED UNION TIME BY DEPARTMENT/AGENCY – FY 2019 | | | | | |
|---|---|---|---|---|---|
| **Department/Agency** | **Term Negotiation Hours** | **Mid-Term Negotiation Hours** | **Dispute Resolution Hours** | **General Labor-Management Relations Hours** | **FY 2019 Total TFUT Hours** |
| U.S. International Trade Commission | 0.00 | 0.00 | 122.00 | 11.00 | 133.00 |
| Merit Systems Protection Board | 0.00 | 0.00 | 21.50 | 54.50 | 76.00 |
| National Aeronautics and Space Administration | 405.00 | 423.40 | 1,073.60 | 5,941.10 | 7,843.10 |
| National Archives and Records Administration | 53.50 | 0.00 | 1,294.05 | 6,670.15 | 8,017.70 |
| National Credit Union Administration | 29.00 | 259.00 | 273.00 | 399.20 | 960.20 |
| National Endowment for the Arts | 1.00 | 0.00 | 4.50 | 2.00 | 7.50 |
| National Endowment for the Humanities | 0.00 | 0.00 | 0.00 | 6.00 | 6.00 |
| National Labor Relations Board | 362.25 | 386.50 | 3,937.00 | 2,799.25 | 7,485.00 |
| National Mediation Board | 0.00 | 0.00 | 0.00 | 1.00 | 1.00 |
| National Science Foundation | 96.00 | 10.00 | 40.25 | 38.00 | 184.25 |
| National Transportation Safety Board | 0.00 | 0.00 | 0.00 | 0.00 | 0.00 |
| Nuclear Regulatory Commission | 0.00 | 1.50 | 1,166.50 | 2,801.75 | 3,969.75 |
| U.S. Office of Personnel Management | 687.00 | 93.00 | 835.50 | 2,866.50 | 4,482.00 |
| Peace Corps | 0.00 | 0.00 | 0.00 | 109.75 | 109.75 |
| Pension Benefit Guaranty Corporation | 36.00 | 121.50 | 228.75 | 38.25 | 424.50 |
| Pretrial Services Agency | 0.00 | 43.50 | 9.75 | 210.50 | 263.75 |
| Railroad Retirement Board | 15.00 | 0.00 | 0.00 | 3,658.20 | 3,673.20 |
| Securities and Exchange Commission | 43.00 | 2,431.75 | 2,146.25 | 2,451.75 | 7,072.75 |
| Small Business Administration | 0.00 | 134.50 | 803.50 | 2,877.50 | 3,815.50 |
| Social Security Administration | 3,340.00 | 1,102.00 | 8,570.00 | 196,530.00 | 20,9542.00 |
| **Total – all TFUT agencies** | **158,799.77** | **62,112.25** | **388,529.66** | **1,996,948.60** | **2,606,390.28** |

## Taxpayer-Funded Union Time Compensation Costs

Taxpayer-funded union time compensation costs were provided by 54 of the 55 agencies for FY 2019. OPM requested each agency provide the total compensation costs (salary and benefits) for each bargaining unit employee who used taxpayer-funded union time during FY 2019. Take note that the total compensation for FY 2016 was calculated based on the average BUE salary, not the actual compensation of the employees who used official time. Using this measure, the total Governmentwide payroll costs reported to OPM by agencies, including salary and benefits, for FY 2019 taxpayer-funded union time hours were $134,987,041.47 (See Appendix B). In comparing FY 2016 and FY 2019 data, the cost of taxpayer-funded union time hours decreased by 23.83 percent over this 3-year period.

| TAXPAYER-FUNDED UNION TIME COMPENSATION BY DEPARTMENT/AGENCY – FY 2019 vs. FY 2016 | | | |
|---|---|---|---|
| **Department/Agency** | **FY 2019 Total Compensation Costs** | **FY 2016 Total Compensation Costs** | **% Change to Compensation Costs** |
| U.S. Agency for Global Media (formerly BBG) | $135,944.61 | $711,950.72 | -80.91% |
| U.S. Agency for International Development | $75,265.96 | $330,755.27 | -77.24% |
| Armed Forces Retirement Home | $28,995.52 | $17,620.03 | 64.56% |
| U.S. Commission on Civil Rights | $0.00 | $0.00 | 0.00% |
| Commodity Futures Trading Commission | $72,631.40 | $154,713.05 | -53.05% |
| Consumer Financial Protection Bureau | $354,792.48 | $513,989.90 | -30.97% |
| Consumer Product Safety Commission | $17,308.85 | $9,836.21 | 75.97% |
| Corporation for National and Community Service | No Response | $2,799.74 | Unknown |
| Court Services and Offender Supervision Agency | $25,193.18 | $45,407.67 | -44.52% |
| Department of Agriculture | $3,211,553.05 | $4,349,351.96 | -26.16% |
| Department of Commerce | $2,967,000.42 | $4,020,536.42 | -26.20% |
| Department of Defense | $21,314,955.07 | $16,408,494.35 | 29.90% |
| Department of Education | $101.03 | $424,556.37 | -99.98% |
| Department of Energy | $429,356.21 | $611,387.20 | -29.77% |
| Department of Health and Human Services | $767,781.84 | $3,765,362.06 | -79.61% |
| Department of Homeland Security | $14,804,839.80 | $10,470,497.17 | 41.40% |
| Department of Housing and Urban Development | $1,981,860.49 | $2,702,777.72 | -26.67% |
| Department of Justice | $9,737,126.71 | $14,959,625.20 | -34.91% |
| Department of Labor | $3,230,966.26 | $2,623,523.31 | 23.15% |
| Department of State (includes AFSA unit) | $660,011.52 | $1,071,381.24 | -38.40% |
| Department of the Interior | $643,186.77 | $675,295.35 | -4.75% |
| Department of the Treasury | $17,268,679.45 | $22,417,155.78 | -22.97% |
| Department of Transportation | $17,417,877.07 | $17,975,235.48 | -3.10% |
| Department of Veterans Affairs | $21,006,419.70 | $49,142,863.90 | -57.25% |
| Environmental Protection Agency | $1,852,028.83 | $4,073,298.24 | -54.53% |
| Equal Employment Opportunity Commission | $211,167.44 | $309,483.38 | -31.77% |
| Export-Import Bank | $363.42 | $0.00 | N/A |
| Federal Communications Commission | $363,825.97 | $144,572.23 | 151.66% |
| Federal Deposit Insurance Corporation | $400,524.07 | $408,092.15 | -1.85% |
| Federal Election Commission | $931.87 | $365.07 | 155.26% |
| Federal Energy Regulatory Commission | $5,070.02 | $26,442.34 | -80.83% |

| TAXPAYER-FUNDED UNION TIME COMPENSATION BY DEPARTMENT/AGENCY – FY 2019 vs. FY 2016 | | | |
|---|---|---|---|
| **Department/Agency** | **FY 2019 Total Compensation Costs** | **FY 2016 Total Compensation Costs** | **% Change to Compensation Costs** |
| Federal Mediation and Conciliation Service | $0.00 | $497.86 | -100.00% |
| Federal Trade Commission | $113.79 | $4,791.96 | -97.63% |
| General Services Administration | $1,552,136.67 | $2,011,533.73 | -22.84% |
| U.S. International Development Finance Corporation (formerly OPIC) | $9,293.68 | $8,133.40 | 14.27% |
| U.S. International Trade Commission | $8,205.67 | $82,134.00 | -90.01% |
| Merit Systems Protection Board | $7,122.10 | $3,594.48 | 98.14% |
| National Aeronautics and Space Administration | $641,037.07 | $1,000,888.87 | -35.95% |
| National Archives and Records Administration | $293,289.56 | $374,817.83 | -21.75% |
| National Credit Union Administration | $81,823.05 | $176,765.80 | -53.71% |
| National Endowment for the Arts | $487.20 | $2,218.89 | -78.04% |
| National Endowment for the Humanities | $432.13 | $21,759.91 | -98.01% |
| National Labor Relations Board | $603,808.17 | $470,854.48 | 28.24% |
| National Mediation Board | $62.64 | $1,457.45 | -95.70% |
| National Science Foundation | $13,424.11 | $68,430.40 | -80.38% |
| National Transportation Safety Board | $0.00 | $7,685.09 | -100.00% |
| Nuclear Regulatory Commission | $377,056.66 | $368,010.46 | 2.46% |
| U.S. Office of Personnel Management | $257,542.74 | $445,752.58 | -42.22% |
| Peace Corps | $4,123.34 | $11,876.09 | -65.28% |
| Pension Benefit Guaranty Corporation | $39,987.15 | $52,153.36 | -23.33% |
| Pretrial Services Agency | $19,385.85 | $125,718.27 | -84.58% |
| Railroad Retirement Board | $212,433.13 | $223,515.22 | -4.96% |
| Securities and Exchange Commission | $894,073.28 | $911,260.09 | -1.89% |
| Small Business Administration | $241,700.68 | $277,300.68 | -12.84% |
| Social Security Administration | $10,743,743.79 | $11,678,051.20 | -8.00% |
| **Total - all TFUT agencies** | **$134,987,041.47** | **$177,211,408.53[18]** | **-23.83%** |

[18] The FY 2016 total costs of taxpayer-funded union time reflects the FY 2016 totals from the published OPM official time report, not the sum of the costs in the column.

## Conclusion

Agencies reported that, during FY 2019, bargaining unit employees spent a total of 2,606,390 hours performing representational duties on TFUT, a decrease of 28.26 percent compared to FY 2016. Governmentwide[19], the number of TFUT hours used per bargaining unit employee on representational matters decreased from 2.97 hours in FY 2016 to 1.96 hours during FY 2019. Key provisions of EO 13837 limiting the use of TFUT were enjoined during FY 2019, so these limitations were not directly responsible for the decrease in the number of TFUT hours used across Government. However, we believe that agencies were mindful of the EO requirement calling for an effective and efficient government and were more effective in monitoring and tracking the use of TFUT and ensuring it was used only for authorized purposes. [20] As discussed above, enhanced scrutiny of the use of TFUT and more diligent tracking of TFUT used by employees has likely impacted the number of taxpayer-funded union time hours reported to OPM by agencies.

The estimated total payroll costs, salary and benefits, for employees who used TFUT hours in FY 2019 were $134,987,041.47. In comparing FY 2016[21] and FY 2019 data, the estimated cost of TFUT hours decreased by 23.83 percent over this 3-year period. This decrease in payroll costs is largely a result of the 28.26 percent decrease in the number of hours of TFUT as well as the change in OPM's methodology in calculating the costs.

Unlike the FY 2016 report, the FY 2019 report on TFUT usage in the Federal Government includes payroll costs and captures a complete accounting of the costs of union activities in the Federal Government. In addition, OPM's report now includes the costs of taxpayer-funded facilities, equipment, and travel expenses agencies provided to labor organizations as a result of collective bargaining. The total value of government property used by labor organizations was $24,884,134.22 and other expenses paid by agencies totaled $3,456,059.51 in FY 2019. Therefore, the operation of labor organizations resulted in an additional cost of $28,340,193.73 to the American taxpayer.

The total cost[22] to the American taxpayer for TFUT and other expenses incurred by labor organizations but provided by the Federal Government was $163,327,235.21. While costs to the American taxpayer appear to have decreased since EO 13837 was issued, OPM believes opportunities remain for the Federal Government to continue reducing these costs now that EO 13837 is in full force and effect. Agencies are expected to continue fully implementing the EO requirements and renegotiating their collective bargaining agreements at the earliest opportunity under the law.

For further information regarding this report, please contact OPM's Accountability and Workforce Relations at awr@opm.gov.

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[19] Numbers include agencies covered by EO 13837 and do not include the U.S. Postal Service.
[20] On November 18, 2018, OPM issued "Additional Guidance Relating to Implementation of Executive Orders 13836, 13837 and 13839." The guidance noted "agencies should approach bargaining, including bargaining over those subjects covered by the currently enjoined provisions of the Executive Orders, as a party to the statutory collective bargaining process – that is to say, in a good faith manner that best reflects agency mission needs."
[21] The total compensation for FY 2016 previously reported the average BUE salary, not actual compensation of the employees who used official time.
[22] Three agencies (DoD, SEC, and SBA) received reimbursements, in the amount of $53,855.50, for the use of government property.

**Appendix A – Taxpayer-Funded Union Time Definitions and Terminology**

**Taxpayer-Funded Union Time (Official Time)** means all time, regardless of agency nomenclature, granted to an employee by the agency to perform representational functions under 5 U.S.C. Chapter 71 and by collective bargaining agreement when the employee would otherwise be in a duty status.

**Taxpayer-Funded Union Time Reporting Categories**— agencies are asked to report four categories of taxpayer-funded union time use.

- Term Negotiations — this category for reporting taxpayer-funded union time hours refers to time used by union representatives to prepare for and negotiate a basic collective bargaining agreement or its successor.

- Mid-Term Negotiations — this category for reporting taxpayer-funded union time hours refers to time used to bargain over issues raised during the life of a term agreement.

- Dispute Resolution — this category for reporting taxpayer-funded union time hours refers to time used to file and process grievances up to and including arbitrations and to process appeals of bargaining unit employees to the Federal Labor Relations Authority and, as necessary, to the courts.

- General Labor-Management Relations — this category for reporting taxpayer-funded union time hours refers to time used for activities not included in the above three categories.

**Representational Functions** refers to activities undertaken by employees acting on behalf of the labor organization or fulfilling the organization's responsibility to represent bargaining unit employees in accordance with 5 U.S.C. Chapter 71 and a collective bargaining agreement.

## Appendix B – Taxpayer-Funded Union Time Summary by Agency FY 2019

| Department/ Agency | FY 2019 Bargaining Unit Employees | FY 2019 Total TFUT Hours[23] | Term Negotiations | Mid-Term Negotiations | Dispute Resolution | General Labor-Management Relations | Hours per Bargaining Unit Employee | Salary + Benefits Cost |
|---|---|---|---|---|---|---|---|---|
| U.S. Agency for Global Media (formerly BBG) | 929 | 2,493.00 | 2.00 | 73.50 | 1,469.25 | 948.25 | 2.68 | $135,944.61 |
| U.S. Agency for International Development | 696 | 1,339.25 | 0.00 | 0.00 | 0.00 | 1,339.25 | 1.92 | $75,265.96 |
| Armed Forces Retirement Home | 209 | 995.00 | 303.00 | 50.00 | 91.50 | 550.50 | 4.76 | $28,995.52 |
| U.S. Commission on Civil Rights | 19 | 0.00 | 0.00 | 0.00 | 0.00 | 0.00 | 0.00 | $0.00 |
| Commodity Futures Trading Commission | 401 | 621.75 | 74.00 | 0.00 | 0.75 | 547.00 | 1.55 | $72,631.40 |
| Consumer Financial Protection Bureau | 897 | 3,991.75 | 0.00 | 583.00 | 1,001.00 | 2,407.75 | 4.45 | $354,792.48 |
| Consumer Product Safety Commission | 376 | 253.00 | 116.50 | 0.00 | 0.00 | 136.50 | 0.67 | $17,308.85 |
| Corporation for National and Community Service | 319 | No Response | No Response | No Response | No Response | No Response | No Response | No Response |

[23] Numbers may not total due to rounding.

| Department/ Agency | FY 2019 Bargaining Unit Employees | FY 2019 Total TFUT Hours[23] | Term Negotiations | Mid-Term Negotiations | Dispute Resolution | General Labor-Management Relations | Hours per Bargaining Unit Employee | Salary + Benefits Cost |
|---|---|---|---|---|---|---|---|---|
| Court Services and Offender Supervision Agency | 497 | 377.35 | 0.00 | 2.00 | 131.50 | 243.85 | 0.76 | $25,193.18 |
| Department of Agriculture | 35,671 | 67,291.00 | 5,705.75 | 1,402.25 | 10,821.75 | 49,361.25 | 1.89 | $3,211,553.05 |
| Department of Commerce | 20,603 | 48,956.75 | 8,903.00 | 828.50 | 13,026.50 | 26,198.75 | 2.38 | $2,967,000.42 |
| Department of Defense | 492,668 | 526,990.00 | 34,309.00 | 12,665.00 | 106,135.00 | 373,881.00 | 1.07 | $21,314,955.07 |
| Department of Education | 2,189 | 1.50 | 0.00 | 0.00 | 1.50 | 0.00 | 0.00 | $101.03 |
| Department of Energy | 5,755 | 5,771.50 | 835.25 | 87.50 | 1,015.25 | 3,833.50 | 1.00 | $429,356.21 |
| Department of Health and Human Services | 33,752 | 10,161.00 | 150.00 | 287.00 | 693.00 | 9,031.00 | 0.30 | $767,781.84 |
| Department of Homeland Security | 118,323 | 220,372.00 | 17,055.00 | 12,022.25 | 41,151.50 | 150,143.25 | 1.86 | $14,804,839.80 |
| Department of Housing and Urban Development | 5,180 | 24,852.50 | 2,110.75 | 330.50 | 19,673.75 | 2,737.50 | 4.80 | $1,981,860.49 |
| Department of Justice | 32,154 | 228,545.00 | 42,087.25 | 2,320.75 | 38,872.50 | 145,264.50 | 7.11 | $9,737,126.71 |
| Department of Labor | 9,840 | 53,262.20 | 17,289.75 | 353.75 | 2,734.00 | 32,884.70 | 5.41 | $3,230,966.26 |

| Department/ Agency | FY 2019 Bargaining Unit Employees | FY 2019 Total TFUT Hours[23] | Term Negotiations | Mid-Term Negotiations | Dispute Resolution | General Labor-Management Relations | Hours per Bargaining Unit Employee | Salary + Benefits Cost |
|---|---|---|---|---|---|---|---|---|
| Department of State (includes AFSA unit) | 20,400 | 8,190.00 | 500.00 | 500.00 | 498.00 | 6,692.00 | 0.40 | $660,011.52 |
| Department of the Interior | 20,058 | 13,208.10 | 645.75 | 67.25 | 1,098.75 | 11,396.35 | 0.66 | $643,186.77 |
| Department of the Treasury | 68,625 | 353,820.00 | 1,733.00 | 2,791.00 | 23,376.00 | 325,920.00 | 5.16 | $17,268,679.45 |
| Department of Transportation | 38,068 | 213,851.98 | 831.67 | 1,232.15 | 10,623.06 | 201,165.10 | 5.62 | $17,417,877.07 |
| Department of Veterans Affairs | 324,105 | 502,082.05 | 20,046.30 | 19,982.45 | 80,453.00 | 381,600.30 | 1.55 | $21,006,419.70 |
| Environmental Protection Agency | 10,175 | 22,760.50 | 255.75 | 1,430.25 | 1,048.00 | 20,026.50 | 2.24 | $1,852,028.83 |
| Equal Employment Opportunity Commission | 2,021 | 3,962.25 | 0.00 | 14.00 | 830.50 | 3,117.75 | 1.96 | $211,167.44 |
| Export-Import Bank | 34 | 7.50 | 0.00 | 0.00 | 1.50 | 6.00 | 0.22 | $363.42 |
| Federal Communications Commission | 847 | 4,066.00 | 323.50 | 72.00 | 1,136.75 | 2,533.75 | 4.80 | $363,825.97 |
| Federal Deposit Insurance Corporation | 4,017 | 3,633.00 | 286.50 | 10.50 | 503.00 | 2,833.00 | 0.90 | $400,524.07 |
| Federal Election Commission | 147 | 10.50 | 0.00 | 0.00 | 0.00 | 10.50 | 0.07 | $931.87 |

| Department/ Agency | FY 2019 Bargaining Unit Employees | FY 2019 Total TFUT Hours[23] | Term Negotiations | Mid-Term Negotiations | Dispute Resolution | General Labor-Management Relations | Hours per Bargaining Unit Employee | Salary + Benefits Cost |
|---|---|---|---|---|---|---|---|---|
| Federal Energy Regulatory Commission | 1,059 | 71.50 | 0.00 | 0.00 | 1.00 | 70.50 | 0.07 | $5,070.02 |
| Federal Mediation and Conciliation Service | 27 | 0.00 | 0.00 | 0.00 | 0.00 | 0.00 | 0.00 | $0.00 |
| Federal Trade Commission | 256 | 2.00 | 0.00 | 0.00 | 0.00 | 2.00 | 0.01 | $113.79 |
| General Services Administration | 5,938 | 26,247.40 | 168.30 | 0.00 | 11,607.20 | 14,471.90 | 4.42 | $1,552,136.67 |
| U.S. International Development Finance Corporation (formerly OPIC) | 163 | 136.00 | 0.00 | 0.00 | 8.00 | 128.00 | 0.83 | $9,293.68 |
| U.S. International Trade Commission | 300 | 133.00 | 0.00 | 0.00 | 122.00 | 11.00 | 0.44 | $8,205.67 |
| Merit Systems Protection Board | 67 | 76.00 | 0.00 | 0.00 | 21.50 | 54.50 | 1.13 | $7,122.10 |
| National Aeronautics and Space Administration | 9,214 | 7,843.10 | 405.00 | 423.40 | 1,073.60 | 5,941.10 | 0.85 | $641,037.07 |
| National Archives and Records Administration | 1,807 | 8,017.70 | 53.50 | 0.00 | 1,294.05 | 6,670.15 | 4.44 | $293,289.56 |
| National Credit Union Administration | 843 | 960.20 | 29.00 | 259.00 | 273.00 | 399.20 | 1.14 | $81,823.05 |
| National Endowment for the Arts | 86 | 7.50 | 1.00 | 0.00 | 4.50 | 2.00 | 0.09 | $487.20 |

| Department/ Agency | FY 2019 Bargaining Unit Employees | FY 2019 Total TFUT Hours[23] | Term Negotiations | Mid-Term Negotiations | Dispute Resolution | General Labor-Management Relations | Hours per Bargaining Unit Employee | Salary + Benefits Cost |
|---|---|---|---|---|---|---|---|---|
| National Endowment for the Humanities | 83 | 6.00 | 0.00 | 0.00 | 0.00 | 6.00 | 0.07 | $432.13 |
| National Labor Relations Board | 788 | 7,485.00 | 362.25 | 386.50 | 3,937.00 | 2,799.25 | 9.50 | $603,808.17 |
| National Mediation Board | 8 | 1.00 | 0.00 | 0.00 | 0.00 | 1.00 | 0.13 | $62.64 |
| National Science Foundation | 956 | 184.25 | 96.00 | 10.00 | 40.25 | 38.00 | 0.19 | $13,424.11 |
| National Transportation Safety Board | 273 | 0.00 | 0.00 | 0.00 | 0.00 | 0.00 | 0.00 | $0.00 |
| Nuclear Regulatory Commission | 1,937 | 3,969.75 | 0.00 | 1.50 | 1,166.50 | 2,801.75 | 2.05 | $377,056.66 |
| U.S. Office of Personnel Management | 1,295 | 4,482.00 | 687.00 | 93.00 | 835.50 | 2,866.50 | 3.46 | $257,542.74 |
| Peace Corps | 356 | 109.75 | 0.00 | 0.00 | 0.00 | 109.75 | 0.31 | $4,123.34 |
| Pension Benefit Guaranty Corporation | 503 | 424.50 | 36.00 | 121.50 | 228.75 | 38.25 | 0.84 | $39,987.15 |
| Pretrial Services Agency | 237 | 263.75 | 0.00 | 43.50 | 9.75 | 210.50 | 1.11 | $19,385.85 |
| Railroad Retirement Board | 595 | 3,673.20 | 15.00 | 0.00 | 0.00 | 3,658.20 | 6.17 | $212,433.13 |

| Department/ Agency | FY 2019 Bargaining Unit Employees | FY 2019 Total TFUT Hours[23] | Term Negotiations | Mid-Term Negotiations | Dispute Resolution | General Labor-Management Relations | Hours per Bargaining Unit Employee | Salary + Benefits Cost |
|---|---|---|---|---|---|---|---|---|
| Securities and Exchange Commission | 3,203 | 7,072.75 | 43.00 | 2,431.75 | 2,146.25 | 2,451.75 | 2.21 | $894,073.28 |
| Small Business Administration | 1,059 | 3,815.50 | 0.00 | 134.50 | 803.50 | 2,877.50 | 3.60 | $241,700.68 |
| Social Security Administration | 49,194 | 209,542.00 | 3,340.00 | 1,102.00 | 8,570.00 | 196,530.00 | 4.26 | $10,743,743.79 |
| **Total - all agencies** | **1,329,222** | **2,606,390.28** | **158,799.77** | **62,112.25** | **388,529.66** | **1,996,948.60** | **1.96** | **$134,987,041.47** |




**U.S. Office of Personnel Management**

Accountability and Workforce Relations

**1900 E Street, NW, Washington, DC 20415**

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